ORDINANCE NO. 303

AN ORDINANCE FIXING THE TIME FOR THE FILING OR REFERENDUM PETITIONS PROVIDED FOR BY AMENDMENT NO. 7 TO THE CONSTITUTION OF THE STATE OF ARKANSAS, AND FOR REGULATING THE PROCEDURE THEREON.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR:

Section 1. All referendum petitions under Amendment 7 to the Constitution of the State of Arkansas, appearing on pages 1076 to 1084, inclusive of the Acts of the General Assembly of the State of Arkansas of the year 1925, must be filed with the City Clerk within thirty days after the passage of such ordinance.

Section 2. Whenever any referendum petition is filed the City Council shall give notice by publication for one insertion ofa time not less than five days after the publication of such notice at which they will hear all persons who wish to be heard on the question whether such petition is signed by the requisite number of petitioners. At the time named the City Council shall meet and hear all who wish to be heard on the question, and its decision shall be final, unless suit is brought in the Chancery Court of Clay County within thirty days to review its action.

Section 3, If the City Council finds that such petition is signed by the requisite number of petitioners, it may order a special election or place the Question on the Ballot at the next Municipal General Election to determine by a vote of the qualified electors whether the ordinance shall stand or be revoked. The date for any special election shall be not less than ten days after the order therefor has been named by the Council, and said special elections shall be had and conducted as general numicipal elections held in the City of Rector.

Section 4. If any ordiance referred to the people is defeated at the polls, the City Council shall make a note of such fact and shall expunge such ordinance from its files by erasing the same with red ink.

Section 5. If any provision of this ordinance is held to be void, it shall not affect the validity of the remainder, but the remainder shall stand.

Section 6. This ordinance shall be in full force and effect from and after its passage.

PASSED Feb 1, 1971.

ATTEST: Lavern Manchester : MAYOR H. R. French

Recorder